

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 1**  
**Honorable Eunice Lee, Presiding**  
TBD, Courtroom Clerk  
191 North First Street, San Jose, CA 95113

**DATE: August 13, 2026    TIME: 9:00 A.M. and 9:01 A.M.**

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.  
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,  
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

**\*\*Please specify the issue to be contested when calling the Court and counsel\*\***

**LAW AND MOTION TENTATIVE RULINGS**

|                               |            |                                            |                                                            |
|-------------------------------|------------|--------------------------------------------|------------------------------------------------------------|
| <b>9:01 A.M.</b>              |            |                                            |                                                            |
| <a href="#"><u>LINE 1</u></a> | 25CV467969 | Krysta Mercurio et al vs Jayden Tran et al | <b>Hearing on Minor's Compromise</b><br>Parties to appear. |

**- oo0oo -**

9:00 A.M.

**Calendar Line # 1**

**Case Name** Debt Recover, Inc. vs. R. Guevara

**Case No.** 2007-1-CV- 079117

**Order to Show Cause: Application for Sale of Dwelling**

**I. BACKGROUND**

**A. BRIEF FACTUAL HISTORY**

Before the Court is Collect Access LLC's ("Collect Access" and "Judgment Creditor Assignee") Motion to grant an Application for Order for Sale of Dwelling, real property located in Santa Clara County, California (APN 684-10-117) against Roxana E. Guevera ("Judgment Debtor"). The judgment is based on a consumer debt that was not secured by the debtor's principal place of residence at the time it was incurred. This is a second application for the same request by the Judgment Creditor Assignee providing further information. On March 24, 2025, the Honorable Shella Deen denied the order without prejudice for evidence on how moving party became the assignee of this judgment and the different names of Judgement Debtor and judgment and title property.

On April 11, 2007, a judgment was entered against Roxana E. Guevera<sup>1</sup> ("Judgment Debtor"); the judgment was assigned to Collect Access on November 17, 2014; and the judgment was renewed on December 30, 2022 in the amount of \$36,734.73. An abstract of judgment on behalf the Judgment Creditor Assignee was recorded in Santa Clara County on January 12, 2009 as document number 20093512, and on November 29, 2018 as document number 24071670. To date \$12,268.64 has been recovered against the Judgment Debtor. Exhibit A in Judgment Creditor Assignee application provides a three-page acknowledgement of assignment of judgment that is filed endorsed on November 17, 2024. Debt Recover, Inc. thereby transfers, permanently assigns, and sets over the debt with Roxana E. Guevara, and individual listed in Case No. 107CV079117 as the debtor. The total sum of debt is listed as \$18,610.84 with a judgment date of April 11, 2007.

The Judgment Debtor acquired the Levied Property on or about June 1, 2000. On October 25, 2024, the Santa Clara County Sheriff's Office levied upon the Levied Property and caused a Notice of Levy to be recorded with the County of Santa Clara Recorder's Office. "Title to the Levied Property is held by Maria N. Guevara, A Married Woman and Roxanna Guevara, A Single Woman." (Collect Access's Application, p. 5). This was emailed to counsel for Judgment Creditor Assignee on October 29, 2024.

Judgment Creditor Assignee asserts that the records for the county tax assessor do not reflect the filing of a Declaration of Homestead for the Levied Property by either record titleholder as set forth by the county recorder to the Levied Property: Roxanna Guevera (the Judgment Debtor ) or Maria N. Guevera (spouse of the Judgment Debtor). Judgment Creditor Assignee claims that it has no information that would indicate that the dwelling is homestead and the amount of the homestead exemption, if any. The records for the county tax assessor reflect a homeowner's exemption for the Levied Property. The records for the county tax assessor do not reflect the filing of a disabled veteran's exemption for the Levied Property. The instant judgment is based on a consumer debt and the consumer debt was not secured by the debtor's principal place of residence at the time it was incurred.

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<sup>1</sup> The judgment was entered against Roxana E. Guevara, an individual, while the title to the Levied Property is listed under the name of Roxanna Guevara. This variation in spelling has been previously addressed and resolved through an Affidavit of Identity, which was filed with the Court on April 12, 2024. The affidavit affirms that Roxana E. Guevara and Roxanna Guevara are in fact the same person. (Collect Access Application, p.4 and Exhibit D).

On June 12, 2025, the Judgment Creditor Assignee refiled an application for an order for the sale of dwelling, accompanied by a proof of service via mail service<sup>2</sup> on that same day. On June 20, 2025, Declaration of Service by posting the Application and papers were attached to the tenant address of 4544 Bolero Drive, San Jose, California, 95111 on June 16, 2025 at 8:16 p.m. Collect Access attached a copy of a notice of hearing on right to homestead exemption. The original motion was heard on March 4, 2025. At the previous hearing, the court denied the motion without prejudice, expressly stating that the motion may be refiled with evidence of how Collect Access became the assignee and explanation of the different in names of the Judgment Debtor's name as it appears on the title. The Judgment Creditor Assignee refiled this motion and exhibits addressing the Court's earlier ruling. (Collect Access Application, totaling 6 pages and Declaration of Tappan Zee, totaling 55 pages with attached Exhibits A- E).

## **B. RELEVANT PROCEDURAL HISTORY**

This matter was initially set for hearing on February 17, 2026. No opposition papers were filed with the court. Per California Code of Civil Procedure section 1005(b) opposition papers were due on February 2, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. However, given the gravity of the request for an order to sell the levied property, the Court provided another opportunity for the Judgment Debtor to respond. The Court set this Order to Show Cause as to why an order for sale on the Levied Property should not proceed and ordered the Judgment Debtor to appear.

The motion continues to be unopposed. Per California Code of Civil Procedure section 1005(b) opposition papers were due on July 31, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the nonresponding party has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

Judge Creditor Assignee filed the motion for an order for sale of the dwelling on June 12, 2025 and October 29, 2024. Both motions were accompanied by proofs of service via mail service on the defendant Roxana E. Guvera, Maria N. Guevara, and Roxanna Guevara on June 12, 2025 and October 29, 2024.

The Court has carefully reviewed the following moving papers; on June 12, 2025 notice and application for the order (totaling 6 pages); June 12, 2025 Declaration of Tappan Zee in support of the application and attached Exhibits A-D (totaling 55) pages; October 29, 2024 notice and application for the order (totaling 5 pages); October 29, 2024 Declaration of Tappan Zee in support of the application and attached Exhibits A-B (totaling 47 pages); proof of service; and the pleadings.

## **II. LEGAL STANDARD**

California Code of Civil Procedure § 704.750 requires that an Application for Order for Sale of Dwelling be filed with the Court when a lien sale has been initiated by the judgment creditor to enforce a money judgment against a judgment debtor. Pursuant to California Code of Civil Procedure § 704.750(a):

"(a) Promptly after a dwelling is levied upon (other than a dwelling described in subdivision (b) of Section 704.740), the levying officer shall serve notice on the judgment creditor that the levy has been made and that the property will be released unless the judgment creditor complies with the requirements of this section. Service shall be made personally or by mail. Within 20 days after service of the notice, the judgment creditor shall apply to the court for an order for sale of the dwelling and shall file a copy of the application with the levying officer. If the judgment creditor does not file the copy of the application for an order for sale of the dwelling within the allowed time, the levying officer shall release the dwelling."

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<sup>2</sup> Proof of service was sent to Roxana E. Guevara, and Individual and Maria N. Guevara and Roxanna Guevara at 4544 Bolero Drive, San Jose, California 95111.

Under California Code of Civil Procedure § 704.770(a), the motion must be heard withing 45 days after the application is filed, unless there is good cause for a later hearing.

“Upon the filing of the application by the judgment creditor, the court shall set a time and place for hearing and order the judgment debtor to show cause why an order for sale should not be made in accordance with the application. The time set for hearing shall be not later than 45 days after the application is filed or such later time as the court orders upon a showing of good cause.”

Collect Access asserts that it has satisfied the requirements under Code of Civil Procedure sections 704.750(a) and 704.770(a) as the Notice of Levy as reordered on October 25, 2024, and e-mailed to counsel for the Judgement Creditor Assignee on October 29, 2024. In regard to timing, Collect Access asserts that this motion’s date was the earliest available date set for the court and thus asserts good cause for a hearing date after the 45-day window.

### **III. ANALYSIS**

Here, the Court finds that the Judgement Creditor Assignee has satisfied the requirements under Code of Civil Procedure sections 704.750(a) and 704.770(a), provided updated information on how Collect Access became the judgment assignee, and provided evidence of the difference of names the Judgement Debtor.

No opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Rule of Court, Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

### **IV. CONCLUSION**

Based on the foregoing, the unopposed motion, the judgment creditor assignee has met its burden. However, the Court will hear oral arguments from the parties. The Court will prepare the formal Order.

#### **Calendar Line # 2**

**Case Name** KYC Investment Group, a California Corporation vs Kwok Chan et al

**Case No.** 19CV358368

#### **Motion for Attorney’s Fees and Cost**

### **I. BACKGROUND**

This case stems from a November 8, 2019, Complaint involving eight causes of actions, including fraud. (Complaint). Plaintiff KYC Investment Group (“KYC”) alleges that Defendant Kwok Chan recorded a deed of trust on a property as the CEO of KYC and fraudulently filed false statement of information with the Secretary of State. Plaintiff filed a First Amended Complaint on April 23, 2024. On April 25, 2024, parties filed a notice of settlement. Parties field a stipulation extending time to bring the matter to trial on November 15, 2024, on the grounds that the conidium had not sold and the settlement had not been finalized and extended the time under Code of Civil Procedure section 583.310 to May 8, 2025.

On June 23, 2025, the Honorable Shella Deen granted an order shortening time to hear Plaintiff’s motion to enforce settlement pursuant to Code of Civil Procedure section 664.6 and attorney’s fees and costs. On September 9, 2025, Judge Deen granted the motion to enforce the settlement. The motion for fees and costs was denied without prejudice, noting that “specific information as to the nature and extent of time spent is required, rather than a one sentence estimation.” (Order filed October 15, 2025).